

On February 27, 2026, Respondent filed a Request for Order (RFO) seeking to compel discovery responses and sanctions. The RFO and all other required documents were electronically served the same day as filing.

Petitioner filed her Opposition to Respondent's Motion to Compel on March 10th. It was served on March 6th.

Respondent filed and served his Reply Declaration on March 12th.

Respondent brings his RFO requesting the following: (1) Compel Petitioner's responses, without objections, to Respondent's Request for Admission Set One – Truth of Facts and Genuineness of Documents; (2) Compel Petitioner's responses, without objections, to Respondent's Request for Production of Documents – By Respondent to Petitioner, Set One; (3) Compel Petitioner's Response to Family Code § 2107 Demand for Clarification Regarding Final Declaration of Disclosure, as requested by Respondent's counsel; (4) Order Petitioner to pay sanctions directly to Respondent's counsel in the amount of \$3,518.40.

Petitioner argues the motion is untimely pursuant to Civil Procedure § 2024.020(a) which mandates all discovery motions are to be heard no later than 15 days before the date initially set for trial. She says this deadline is calculated on the date the motion is heard, not the date it is filed; however, she does not provide the court with any legal authority to support this position. In fact, case law directly contradicts Petitioner's position in this regard. When a party files a discovery motion and that motion is set to be heard after the 15-day cutoff date, nothing in Section 2024.020 precludes the court from hearing the motion after the cutoff date. *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.*, 165 Cal. App. 4th 1568 (2008). Instead, the statute simply means that the party filing the motion does not have the *right* to have it heard, it does not mean the court has no power to hear it. *Id.*

Petitioner further objects to the motion on the basis that the discovery was served on the "eve of trial." She once again relies on the discovery cutoff date set forth in Section 2024.020 which states that "...any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day." Cal. Civ. Pro. § 2024.020(a). Once again, Petitioner's reliance is misplaced as the statute does not support her position. Section 2024.010 states "[a]s used in this chapter, discovery is considered completed on the day a response is due..." Cal. Civ. Pro. § 2024.010. Here, the discovery in question was served electronically on January 19th thereby making responses due no later than February 18th

which is more than 30 days prior to the start of trial. As such, the requests were served timely.

Finally, Petitioner objects to the discovery as it is harassing. Petitioner has waived her right to make substantive objections to the discovery requests themselves. If a party fails to provide timely responses, as Petitioner did here, that party waives any right to object to the interrogatories, and waives the right to produce writings in response. Cal. Civ. Pro. §2030.290 (a).

In light of the foregoing, the court is inclined to granted the motion in its entirety. That said, there is concern regarding timing for the upcoming trial and whether or not that trial date should be continued. The parties are ordered to appear.

TENTATIVE RULING #17: THE PARTIES ARE ORDERED TO APPEAR.